

Contract



Contract No: GEMC-511687755589839

Generated Date: 23-Apr-2022

Bid/RA/PR No: [GEM/2022/B/1967781](#)

Schedule Name: Schedule 2

Organisation Details	Buyer Details
Type: Central PSU Ministry: Ministry of Coal Department: CENTRAL MINE PLANNING and DESIGN INSTITUTE Limited Organisation Name: CENTRAL MINE PLANNING and DESIGN INSTITUTE Limited Office Zone: CMPDI RI 4 Nagpur	Designation: Chief Manager E and M Contact No.: -- Email ID: barunkumar.gupta@nic.in GSTIN: 27AAACC7475N1Z4 Address: CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, MAHARASHTRA-440015, India

Financial Approval Detail	Paying Authority Details
IFD Concurrence: No Designation of Administrative Approval: Regional Director Designation of Financial Approval: HOD(Fin)	Payment Mode: Offline Designation: Chief Manager E and M Email ID: barunkumar.gupta@nic.in GSTIN: 27AAACC7475N1Z4 Address: CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, MAHARASHTRA-440015, India

Seller Details
GeM Seller ID: 4B14180000090687 Company Name: VA INFO SOLUTIONS INDIA PRIVATE LIMITED Contact No.: 09810003214 Email ID: sales@vainfo.in Address: 487/38 Second Floor National Market, Pranav Jain, 487/38 Second floor National Market, Peeragarhi, New Delhi 110087, Peeragarhi, New Delhi, Delhi-110087, - MSME verified: Yes MSME Registration number: DL03A0001487 MSE Social Category: General GSTIN: 07AACC9965G1ZT, 07AACC9965G1ZT, 07AACC9965G1ZT

*GST / Tax invoice to be raised in the name of - Buyer

Product Details						
#	Item Description	Ordered Quantity	Unit	Unit Price (INR)	Tax Bifurcation (INR)	Price (Inclusive of all Duties and Taxes in INR)
1	Product Name : fox-trot Smart Television Tv 43 Inch LED Backlit LCD Brand : fox-trot Brand Type : Registered Brand Catalogue Status : OEM verified catalogue Selling As : OEM Category Name & Quadrant : Television TV (Q2) 42 4K-LB/S HSN not specified by seller	4	pieces	24,623	GST (28%) : 21,545.125 GST Cess 1 (0%) : 0 GST Cess 2 (0 per accounting unit) : 0 Input Tax Credit (ITC) on GST (100%) : 21,545.125 ITC on GST Cess 1 (0%) : 0 ITC on GST Cess 2 (0%) : 0	98,492
Total Order Value (in INR)						98,492

Consignee Detail						
S.No	Consignee	Item	Lot No.	Quantity	Delivery Start After	Delivery To Be Completed By
1	Designation: - Email ID: barunkumar.gupta@nic.in Contact: -- GSTIN: 27AAACC7475N1Z4 Address: CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, NAGPUR, MAHARASHTRA-440015, India	fox-trot Smart Television Tv 43 Inch LED Backlit LCD	-	4	23-Apr-2022	23-May-2022

Product Specification for fox-trot Smart Television Tv 43 Inch LED Backlit LCD

Specification	Sub-Spec	Value
Specifications	Type	LED Backlit LCD
	Screen Size (Inches)	43
	Resolution (Pixels)	(3840x2160) UHD
	Category	Smart
	Operating System in case of Smart TV	Android
	Static contrast Ratio	2000 : 1
	Typical Brightness	300 - 399
	Screen Mirroring	Yes
	Mount Type	Both table and wall mount
	Inbuilt Speakers	Yes
	If Yes, Wattage of Speakers	10W x 2
	Sub Woofers	No
	Power Consumption (Watts)	28
Ports & Connectivity	Number of HDMI Ports	1
	Number of USB Ports	1
	Number of VGA Ports	0
	Number of Ethernet Ports	1
	Built-in Wi-fi	Yes
	Wi-fi Direct	Yes
Input	Composite Input	No
	Component Input	No
	RF Input	No
Accessories	Built-in set-top Box	Yes
	Details of accessories (included in the scope of supply)	Remote Control,Connecting Cable,Batteries
Certification	BIS Registration as per CRS of Meity	Yes
	BIS Registration Number	R-81007021
	Energy Star Rating in line with the Government of India Notification number S O 1896(E) and S O 1897(E)	4
Generic	Minimum Operating Temperature (Degree C)	-6
	Maximum Operating Temperature (Degree C)	36
	Minimum Operating Humidity (%RH)	10
	Maximum Operating Humidity (%RH)	66
	Dimensions (Length x Breadth x Depth) (mm x mm x mm)	953 x 536
	Weight (Kg)	4.5
Warranty	Warranty(Years)	5

Buyer Defined Additional Specification for fox-trot Smart Television Tv 43 Inch LED Backlit LCD

Specification	Value
MAKE	SONY/LG/SAMSUNG OR EQUIVALENT
CONNECTOR TYPE	USB,WIFI,HDMI
WARRANTY	5 YEARS OEM WARRANTY
Screen size (inches)	43 or more

General Clauses w.r.t RCM/FCM

1. Where ever RCM is applicable, for sellers (Regular GST registered seller who opted out of FCM as per notifications of GST like GTA , unregistered seller), Buyer have liability of paying the GST and GST cess to the government on the specified rate mentioned by them in this contract. Seller will invoice buyer with Zero GST and GST cess.
2. For Registered sellers as per FCM, rates will be inclusive of prescribed rate of GST and GST cess. ITC available to buyer as shown in the bid document have been applied while evaluating the bids. Seller has liability of paying the GST and GST cess to the govt and same will be charged from buyer while invoice.
3. For Registered sellers who opted for RCM while quoting for specified category under section 9(3) like GTA rates will be exclusive of GST and GST cess. GST and GST cess as indicated by the buyer in the bid document payment of GST and GST Cess will be the liability of buyer.
4. For Unregistered sellers Liability of payment of GST and GST cess is in Buyers scope. GST and GST cess as indicated by the buyer in the bid document will be the liability of buyer . Unregistered seller will invoice buyer with zero GST and Zero GST cess.
5. For sellers under Composition Scheme: There is no liability of payment of GST and GST cess in Buyers cope. Seller will invoice Zero GST and GST cess in the invoice to buyer.

Terms and Conditions

1. Special terms and conditions- Version:3 effective from 17-02-2022

1.1

2. General Terms and Conditions-

2.1 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) as available on the GeM portal (unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable

2.2 Terms of delivery: Free Delivery at Site including loading/unloading. In respect of items requiring installation and / or commissioning and other services in the scope of supply (as indicated in respective product category specification / STC / ATC), and the cost of the same is also included in the Contract price.

2.2.1 Contracted goods should be delivered at the consignee or designated delivery location as per the working time of the buying organisation. Seller may get the same confirmed from consignee before scheduling delivery.

2.2.2 A copy of the contract should be available with the messenger / dispatching agency that delivers the Goods at consignee / delivery location (preferably pasted / attached outside the consignment / package) for easy reference and ease in delivery acceptance.

2.3 Delivery period: The Delivery Period/Time shall be essence of the Contract and delivery must be completed not later than such date(s). Any modification thereto shall be mutually agreed and incorporated in the Contract as per the provisions of the GTC.

2.4 Performance Security: If the Seller fails or neglects to observe or perform any of his obligations under the contract it shall be lawful for the Buyer to forfeit either in whole or in part, the Performance Security furnished by the Seller.

2.5 Taxes and Duties: Contract Prices are all inclusive i.e. including all taxes, duties, local levies / transportation / loading-unloading charges etc. Break up of GST shall be indicated by the Seller while raising invoice / bill on GeM. While submitting the bill / invoice Seller shall undertake that the Goods and Services Tax (GST) charged on this bill is not more than what is payable under the provision on the relevant Act or the Rules made there under and that the Goods on which GST has been charged have not been exempted under the GST Act or the Rules made there under and the charges on account of GST on these goods are correct under the provision of that Act or the rules made there under.

2.6 Octroi Duty and / or other local taxes:Contract Prices are all inclusive hence no reimbursement over and above the contract price(s) shall be allowed to seller towards payment of local taxes (such as levy of town duty, Octroi Duty, Terminal Tax and other levies of local bodies etc).

2.7 Limitation of Liability: The provisions of limitation of liability between Buyer and Seller as given in the GTC shall be applicable here.

2.8 Resolution of disputes: The provisions of DISPUTE RESOLUTION BETWEEN BUYER AND SELLER as given in the GTC shall be applicable here.

2.9 Liquidated Damages: If the Seller fails to deliver any or all of the Goods/Services within the original/re-fixed delivery period(s) specified in the contract, the Buyer will be entitled to deduct/recover the Liquidated Damages for the delay, unless covered under Force Majeure conditions aforesaid, @ 0.5% per week or part of the week of delayed period as pre-estimated damages not exceeding 10% of the contract value without any controversy/dispute of any sort whatsoever. In case, Service Level Agreement (SLA) is applicable the same shall be applicable for the Contract.

2.10 Financial Certificate:

2.10.1 The expenditure involved for this purpose has received the Sanction of the competent financial authority.

2.10.2 The funds are available under the proper head in the sanction budget allotment for the concern financial year.

2.10.3 I have been fully authorized by the department to sign the supply order or incur the liability of the Goods being ordered.

2.11 The bidder should submit a self declaration to the effect in bidder's official letter head that their agency have not been black listed by any Agency whatsoever till date.

3. Buyer Added Bid Specific Terms and Conditions-

3.1 Scope of Supply:

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

3.2 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3.3 Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

1. OEM authorization certificate needs to be submitted.
2. OEM warranty - 05 (five) years.
3. Supply, installation and commissioning of goods along with accessories like TV stand etc.
4. 100% purchase preference given to MSE for non-splittable quantities if MSE Seller(s) quoted price within L-1+15%.

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3.4 Warranty:

Warranty period of the supplied products shall be 5 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

Contract



Contract No: GEMC-511687705872247

Generated Date: 23-Apr-2022

Bid/RA/PR No: [GEM/2022/B/1967781](#)

Schedule Name: Schedule 1

Organisation Details Type: Central PSU Ministry: Ministry of Coal Department: CENTRAL MINE PLANNING and DESIGN INSTITUTE Limited Organisation Name: CENTRAL MINE PLANNING and DESIGN INSTITUTE Limited Office Zone: CMPDI RI 4 Nagpur	Buyer Details Designation: Chief Manager E and M Contact No.: -- Email ID: barunkumar.gupta@nic.in GSTIN: 27AAACC7475N1Z4 Address: CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, MAHARASHTRA-440015, India
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Financial Approval Detail IFD Concurrence: No Designation of Administrative Approval: Regional Director Designation of Financial Approval: HOD(Fin)	Paying Authority Details Payment Mode: Offline Designation: Asst MANAGER x28FINANCEx29 Email ID: dhammakirti.katkar@nic.in GSTIN: N Address: CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, NAGPUR CITY, MAHARASHTRA-440015, India
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Seller Details GeM Seller ID: 4B14180000090687 Company Name: VA INFO SOLUTIONS INDIA PRIVATE LIMITED Contact No.: 09810003214 Email ID: sales@vainfo.in Address: 487/38 Second Floor National Market, Pranav Jain, 487/38 Second floor National Market, Peeragarhi, New Delhi 110087, Peeragarhi, New Delhi, Delhi-110087, - MSME verified: Yes MSME Registration number: DL03A0001487 MSE Social Category: General GSTIN: 07AACC79965G1ZT, 07AACC79965G1ZT, 07AACC79965G1ZT
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*GST / Tax invoice to be raised in the name of - Buyer

Product Details						
#	Item Description	Ordered Quantity	Unit	Unit Price (INR)	Tax Bifurcation (INR)	Price (Inclusive of all Duties and Taxes in INR)
1	Product Name : fox-trot Smart Television Tv 75 Inch LED Backlit LCD Brand : fox-trot Brand Type : Registered Brand Catalogue Status : OEM verified catalogue Selling As : OEM Category Name & Quadrant : Television TV (Q2) HD-4.0/I HSN not specified by seller	1	pieces	142,623	GST (28%) : 31,198.781 GST Cess 1 (0%) : 0 GST Cess 2 (0 per accounting unit) : 0 Input Tax Credit (ITC) on GST (100%) : 31,198.781 ITC on GST Cess 1 (0%) : 0 ITC on GST Cess 2 (0%) : 0	142,623
Total Order Value (in INR)						142,623

Consignee Detail						
S.No	Consignee	Item	Lot No.	Quantity	Delivery Start After	Delivery To Be Completed By
1	Designation: - Email ID: barunkumar.gupta@nic.in Contact: -- GSTIN: 27AAACC7475N1Z4 Address: CMPDI CAMPUS, KASTURBA NAGAR, JARIPATKA, NAGPUR, NAGPUR, MAHARASHTRA-440015, India	fox-trot Smart Television Tv 75 Inch LED Backlit LCD	-	1	23-Apr-2022	23-May-2022

Product Specification for fox-trot Smart Television Tv 75 Inch LED Backlit LCD

Specification	Sub-Spec	Value
Specifications	Type	LED Backlit LCD
	Screen Size (Inches)	75
	Resolution (Pixels)	(3840x2160) UHD
	Category	Smart
	Operating System in case of Smart TV	Android
	Static contrast Ratio	2000 : 1
	Typical Brightness	400 - 500
	Screen Mirroring	Yes
	Mount Type	Both table and wall mount
	Inbuilt Speakers	Yes
	If Yes, Wattage of Speakers	20W x 2
	Sub Woofers	No
	Power Consumption (Watts)	58
Ports & Connectivity	Number of HDMI Ports	1
	Number of USB Ports	1
	Number of VGA Ports	0
	Number of Ethernet Ports	1
	Built-in Wi-fi	Yes
	Wi-fi Direct	Yes
Input	Composite Input	No
	Component Input	No
	RF Input	No
Accessories	Built-in set-top Box	No
	Details of accessories (included in the scope of supply)	Remote Control,Connecting Cable,Batteries
Certification	BIS Registration as per CRS of Meity	Yes
	BIS Registration Number	R-81007030
	Energy Star Rating in line with the Government of India Notification number S O 1896(E) and S O 1897(E)	5
Generic	Minimum Operating Temperature (Degree C)	-8
	Maximum Operating Temperature (Degree C)	38
	Minimum Operating Humidity (%RH)	10
	Maximum Operating Humidity (%RH)	68
	Dimensions (Length x Breadth x Depth) (mm x mm x mm)	1661 x 935
	Weight (Kg)	15
Warranty	Warranty(Years)	5

Buyer Defined Additional Specification for fox-trot Smart Television Tv 75 Inch LED Backlit LCD

Specification	Value
Make	SONY/LG/SAMSUNG OR EQUIVALENT
CONNECTOR TYPE	USB,WIFI, HDMI
WARRANTY	5 YEARS OEM WARRANTY

General Clauses w.r.t RCM/FCM

1. Where ever RCM is applicable, for sellers (Regular GST registered seller who opted out of FCM as per notifications of GST like GTA , unregistered seller), Buyer have liability of paying the GST and GST cess to the government on the specified rate mentioned by them in this contract. Seller will invoice buyer with Zero GST and GST cess.
2. For Registered sellers as per FCM, rates will be inclusive of prescribed rate of GST and GST cess. ITC available to buyer as shown in the bid document have been applied while evaluating the bids. Seller has liability of paying the GST and GST cess to the govt and same will be charged from buyer while invoice.
3. For Registered sellers who opted for RCM while quoting for specified category under section 9(3) like GTA rates will be exclusive of GST and GST cess. GST and GST cess as indicated by the buyer in the bid document payment of GST and GST Cess will be the liability of buyer.
4. For Unregistered sellers Liability of payment of GST and GST cess is in Buyers scope. GST and GST cess as indicated by the buyer in the bid document will be the liability of buyer . Unregistered seller will invoice buyer with zero GST and Zero GST cess.
5. For sellers under Composition Scheme: There is no liability of payment of GST and GST cess in Buyers cope. Seller will invoice Zero GST and GST cess in the invoice to buyer.

Terms and Conditions

1. Special terms and conditions- Version:3 effective from 17-02-2022

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2.2 Terms of delivery: Free Delivery at Site including loading/unloading. In respect of items requiring installation and / or commissioning and other services in the scope of supply (as indicated in respective product category specification / STC / ATC), and the cost of the same is also included in the Contract price.

2.2.1 Contracted goods should be delivered at the consignee or designated delivery location as per the working time of the buying organisation. Seller may get the same confirmed from consignee before scheduling delivery.

2.2.2 A copy of the contract should be available with the messenger / dispatching agency that delivers the Goods at consignee / delivery location (preferably pasted / attached outside the consignment / package) for easy reference and ease in delivery acceptance.

2.3 Delivery period: The Delivery Period/Time shall be essence of the Contract and delivery must be completed not later than such date(s). Any modification thereto shall be mutually agreed and incorporated in the Contract as per the provisions of the GTC.

2.4 Performance Security: If the Seller fails or neglects to observe or perform any of his obligations under the contract it shall be lawful for the Buyer to forfeit either in whole or in part, the Performance Security furnished by the Seller.

2.5 Taxes and Duties: Contract Prices are all inclusive i.e. including all taxes, duties, local levies / transportation / loading-unloading charges etc. Break up of GST shall be indicated by the Seller while raising invoice / bill on GeM. While submitting the bill / invoice Seller shall undertake that the Goods and Services Tax (GST) charged on this bill is not more than what is payable under the provision on the relevant Act or the Rules made there under and that the Goods on which GST has been charged have not been exempted under the GST Act or the Rules made there under and the charges on account of GST on these goods are correct under the provision of that Act or the rules made there under.

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2.7 Limitation of Liability: The provisions of limitation of liability between Buyer and Seller as given in the GTC shall be applicable here.

2.8 Resolution of disputes: The provisions of DISPUTE RESOLUTION BETWEEN BUYER AND SELLER as given in the GTC shall be applicable here.

2.9 Liquidated Damages: If the Seller fails to deliver any or all of the Goods/Services within the original/re-fixed delivery period(s) specified in the contract, the Buyer will be entitled to deduct/recover the Liquidated Damages for the delay, unless covered under Force Majeure conditions aforesaid, @ 0.5% per week or part of the week of delayed period as pre-estimated damages not exceeding 10% of the contract value without any controversy/dispute of any sort whatsoever. In case, Service Level Agreement (SLA) is applicable the same shall be applicable for the Contract.

2.10 Financial Certificate:

2.10.1 The expenditure involved for this purpose has received the Sanction of the competent financial authority.

2.10.2 The funds are available under the proper head in the sanction budget allotment for the concern financial year.

2.10.3 I have been fully authorized by the department to sign the supply order or incur the liability of the Goods being ordered.

2.11 The bidder should submit a self declaration to the effect in bidder's official letter head that their agency have not been black listed by any Agency whatsoever till date.

3. Buyer Added Bid Specific Terms and Conditions-

3.1 Scope of Supply:

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

3.2 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3.3 Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

1. OEM authorization certificate needs to be submitted.

2. OEM warranty - 05 (five) years.

3. Supply, installation and commissioning of goods along with accessories like TV stand etc.

4. 100% purchase preference given to MSE for non-splittable quantities if MSE Seller(s) quoted price within L-1+15%.

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3.4 Warranty:

Warranty period of the supplied products shall be 5 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

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